

**JUSTIFICATION REVIEW DOCUMENT
FOR AN EXCEPTION TO FAIR OPPORTUNITY**

Supply/Service: Atlassian Jira and Confluence Software License

Authority: Federal Acquisition Regulation (FAR) 16.505(b)(2)(i)(B) and FAR 16.505(a)(4)

[REDACTED]

Contracting Officer:

Angela G. Quinn

Contracting Officer

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PH: (520) 693-0364

[REDACTED]

Reviews: I have reviewed this justification and find it adequate to support an exception to fair opportunity.

[REDACTED]

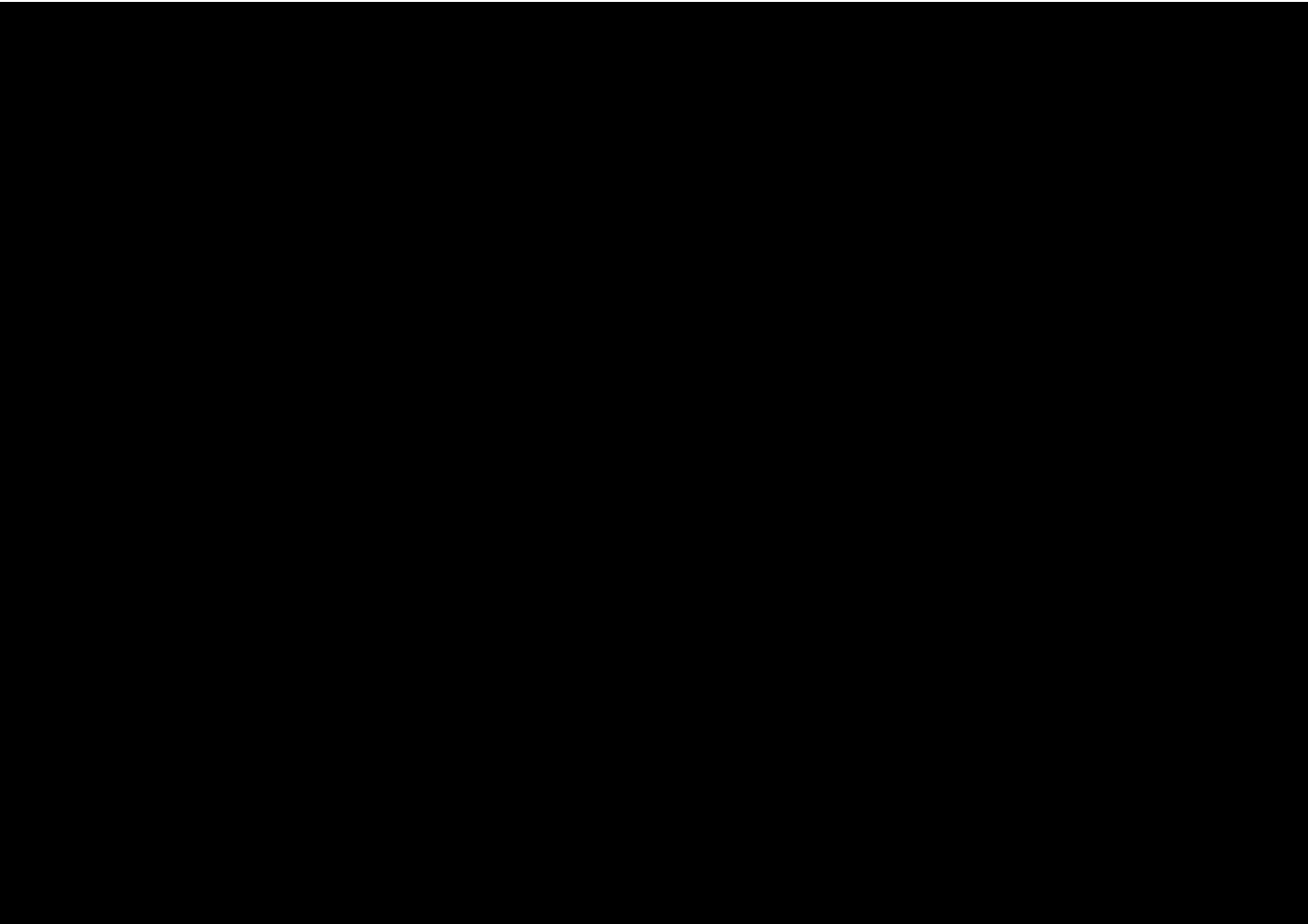
Controlled by: Department of the Army

Controlled by: HQDA CIO/ECMA

CUI Category: PROCURE

Limited Dissemination Control: FEDCON

POC: [REDACTED]



4. Authority Cited: FAR 16.505(b)(2)(i)(B). Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized. FAR 16.505(a)(4) discusses restricting competition to a brand name. Since more than one awardee under the CHES ITES-SW2 contract can provide the supplies or services required at the level of quality required, competition will be restricted to those small business CHES ITES-SW2 contract holders that can quote the Atlassian Jira and Confluence products.

5. Reason for Authority Cited: ECMA initially procured the Atlassian Jira and Confluence licenses in May 2024, under the Highlight Technologies (HLT) Cloud Software Management Services (CSMS) Task Order (TO), W52P1J-21-F-0428, that ended 17 Aug 2024. ECMA leverages Jira and Confluence as collaborative tools for current and future products and services that support the Army. Jira provides a versatile project management, issue tracking, and bug-tracking platform that empowers Army teams to plan, track, and manage agile software development with precision and efficiency by allowing for streamlined sprint planning, real-time progress tracking, and effective task management. Confluence complements Jira by offering a powerful collaboration tool designed for creating, organizing, and sharing team knowledge. With Atlassian Confluence, teams have a centralized hub for crafting project plans, meeting notes, documentation, and other shared resources, enhancing transparency and

teamwork across projects. Together, Jira and Confluence provide a comprehensive environment for agile project management and collaborative knowledge sharing. Since the software is proprietary to Atlassian, these software licenses are unique and highly specialized because only Atlassian, as the Original Equipment Manufacturer, and authorized resellers can provide the Atlassian brand name Jira and Confluence licenses.

ECMA currently utilizes Atlassian Jira as a managed Army software service to support agile project planning, issue tracking, and project management for various software development projects, including those leveraging Azure DevOps and Amazon Web Services (AWS) Code Commit. Atlassian Jira is deeply integrated into the existing infrastructure, providing a unified platform for software development teams to manage and track project progress, collaborate on issue resolution, and plan for future development.

In addition to Jira, ECMA also utilizes Atlassian Confluence as a collaboration software tool to help teams work together more effectively. Confluence is used to create, share, and collaborate on content, such as documents, dashboards, and wikis, and is integrated with Jira to provide a seamless experience for users. Confluence is used to support knowledge management, team collaboration, and project management, and is a critical component of ECMA's software development ecosystem.

Applications and projects developed using the capabilities of Atlassian Jira and Confluence, such as customized workflows, dashboards, and reports, must continue to use these platforms to properly function without the need to redesign, re-engineer, and re-configure the applications to operate in another project management and collaboration environment. Since Atlassian Jira and Confluence are already integrated into the existing infrastructure, no other brand name can seamlessly integrate within the existing infrastructure without extensive reconfiguration.

Acquiring a different license, other than the Atlassian Jira and Confluence brand names, would incur significant onboarding and program migration costs, which could potentially total [REDACTED] per user to transfer all project data, reconfigure automated processes, and re-write code. Additionally, data migration and reconfiguration from one software to another would incur time delays, [REDACTED], to ensure all data is transferred and accurate, [REDACTED], timelines on which ECMA and U.S. Army Cyber Command (ARCYBER) are working, thus inhibiting the delivery of enhanced, innovative products to the Army.

The use of Atlassian Jira and Confluence is critical to the success of ECMA's software development projects, [REDACTED]

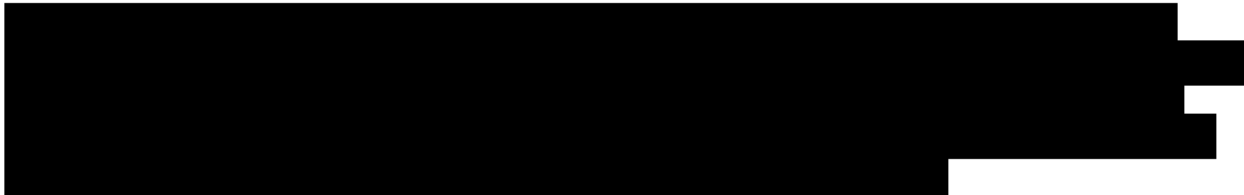
[REDACTED]. If Atlassian Jira and Confluence software licenses are not approved for ECMA, [REDACTED]

[REDACTED]. Additionally, ECMA project managers and team members would lack a unified platform to efficiently manage project workflows, track issue resolution, plan for future development, and collaborate on content, [REDACTED]

6. Market Research: Market research was conducted from [REDACTED] ECMA researched alternatives to Jira and Confluence, [REDACTED] and found that they do not provide the required agile project management, issue tracking, and workflow automation for software development teams, nor do they provide for project plans, meeting notes, timelines, and formal documentation in one place, which is the primary purpose of providing Atlassian JIRA and Confluence software to cARMY customers. Additionally, based on the discussion in paragraph 5, choosing a product other than Jira and Confluence is not a viable solution for the Government as a software with similar functionalities would not be compatible with ECMA's current environment without significant changes or modifications, resulting in extensive impacts to timeline and cost. Therefore, it has been determined that only the Jira and Confluence software can meet the Government's need.

In accordance with Army Federal Acquisition Regulation Supplement Part 5139, CHES is the mandated source for commercial Information Technology software procurements, regardless of dollar value, ensuring compliance with Army standards. Therefore, other sources were not considered.

ECMA issued a Request for Information (RFI) Number 520616 on CHES ITES-SW2 on [REDACTED], to all contract holders. The RFI was open for [REDACTED] days, closing on [REDACTED]. [REDACTED] responses were received of which [REDACTED] small business and [REDACTED] businesses) were no bids. The reason provided for the no bid response included: (1) not an authorized reseller; (2) out-of-scope; (3) insufficient time to respond; and (4) other. The one small business submitting a no-bid indicated it is not an Atlassian authorized reseller.



7. Actions to Increase Competition: Prior to any subsequent procurement, the Government will conduct market research to determine whether requirements could be fulfilled without the use of the brand name restriction.

8. Other Facts:

a. Procurement History:

Contract Number: GS-35F-0040X, TO: W52P1J-21-F-0428

Contractor: HLT

Award Date: 17 August 2021

Competitive Status: Competitive

ECMA awarded the CSMS TO, W52P1J-21-F-0428, to HLT under General Services Administration Multiple Award Schedule contract GS-35F-0040X. The TO was awarded on 17 August 2021. ECMA used the CSMS TO to leverage HLT's ability to procure software on behalf of the Government. ECMA had a need for software development, issue tracking, and team collaboration tools, and requested that HLT seek sources via CHES ITES-SW2 to fulfill the requirement. Atlassian Jira and Confluence was the only software identified at the time that could meet the required specifications.

HLT received three quotes from Blazar Technology Solutions (small business), Dynamic Systems Inc. (women owned small business), and Enterprise Technology Solutions (small business). All three vendors met the technical capabilities of the requirement. HLT acquired the software licenses from the lowest priced vendor, Blazar Technology Solutions, on 10 May 2024. The licenses were added to the CSMS TO as an Other Direct Cost Line Item, which did not necessitate a Justification for Exception to Fair Opportunity, Limited Sources Justification, or other similar document to limit competition. The total value of the Atlassian Jira and Confluence 2,000 user software licenses procurement was [REDACTED] for a total PoP of 12 months.

9. Technical Certification: I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

10. Requirements Certification: I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the

11. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable. Price analysis will be used to make this determination, such as reviewing historical contracts, CHES ITES-SW2 catalog prices, and the IGE. In accordance with FAR 15.403-1(b)(3), certified cost and pricing data is not required as this is a commercial requirement.

Date: 04/16/2025

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Angela G. Quinn
Contracting Officer

12. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

Date: 04/16/2025

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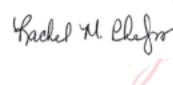
Angela G. Quinn
Contracting Officer

Approval

Based on the foregoing justification, I hereby approve the procurement of Atlassian Jira and Confluence software licenses using an exception to fair opportunity pursuant to the authority of FAR 16.505(b)(2)(i)(B) and FAR 16.505(a)(4), subject to availability of funds, and provided that the services or supplies herein described have otherwise been authorized for acquisition.

Date:

Signature:

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RACHEL M. PHELPS
Competition Advocate